SITABILE MABEL NDEBELE
versus
MELUSI MHLANGA

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 18 July, 11 September 2025 & 22 May 2026

Civil Action-Effect of a foreign divorce judgment on parties' property rights

P. Gonyesa, for the plaintiff
T. Shoko, for the defendant

MUSITHU J:

1. The plaintiff issued summons against the defendant seeking termination of the parties' joint ownership of a certain immovable property, known as Stand 25, Kenilworth Estate of Maunds Plot, situate in the District of Bulawayo also known as No.14 Irene Avenue, Kenilworth, Bulawayo. The parties appeared for a Pre-Trial Conference before DEMBURE J on 9 May 2025, and agreed on the following issues for trial:

> "1. Whether or not the parties are still legally married?
> 2. If so, whether or not the marriage has a bearing on the present action?
> 3. Whether or not the parties are joint owners of Stand No. 25, Kenilworth Estate of Maunds Plot situate in the District of Bulawayo, measuring 1023 meters?
> 4. Whether the Plaintiff is entitled to an order for termination of the joint ownership of the Property?"

2. When the record was placed before me for trial, I invited the parties for a case management meeting on 18 July 2025. At that meeting, it was agreed by the parties that issues one and two of the Joint Pre-Trial Conference Minute were legal issues that ought to be dispensed with first before the commencement of the trial. The parties further agreed that issue number three be amended to read as follows:

> "3. Whether or not the parties are equal joint owners of Stand No. 25, Kenilworth Estate of Maunds Plot situate in the District of Bulawayo, measuring 1023 meters?"

3. Considering the observation made that issues 1 and 2 were legal issues that needed to be disposed of first, the parties were directed to file heads of argument so that the two issues could be dealt with at the outset. The matter was thereafter set down for hearing on 11 September 2025.

Factual Background and Plaintiff's Case

4. The brief background to the matter is as follows. The plaintiff and defendant were married on 26 July 1991 in terms of the then Marriage Act [*Chapter 37*]. The marriage was subsequently dissolved by an order of the District Court of Sarpy County, Nebraska, United of States of America on 23 July 2004.

5. During the subsistence of their marriage, the parties acquired an immovable property, being Stand 25, Kenilworth Estate of Maunds Plot (the property), situate in the District of Bulawayo, measuring 1 023 square metres also known as No. 14 Irene Avenue, Kenilworth. The property was duly registered in both parties' names on 19 June 1992, under Title Deed No. 1623/1992. The plaintiff averred that she no longer wished to be a joint owner with the defendant in the property as there was no basis for the continued existence of such joint ownership.

6. The plaintiff also averred that she had approached the defendant to buy her out of her undivided half share in the property or alternatively, that the property be sold and the proceeds thereof shared equally between them. Despite the request, the defendant failed, neglected, and/or refused to agree to the proposal. The plaintiff accordingly prayed for an order for the termination of the parties' joint ownership.

The Defendant's Case

7. The defendant opposed the termination of the joint ownership of the property on the basis that the parties were still legally married. The defendant averred that the alleged dissolution of the marriage was not registrable in this honourable court's jurisdiction. The defendant admitted that the property in question was registered in the names of both parties. He however averred that the inclusion of the plaintiff's name was nominal, motivated by his love and affection towards her and not for any value. The plaintiff had not made any contribution either directly or indirectly towards the acquisition of the property.

8. The defendant also averred that the property ought to be distributed at properly constituted divorce proceedings. The defendant denied that the plaintiff ever proposed that he buys her out of her undivided half share in the property or alternatively, that the property be sold and the proceeds thereof shared equally between them. The defendant claimed that he proposed that the parties share the matrimonial property with the plaintiff

retaining the Burnside home being number 104 Red Robin Road, Burnside, Bulawayo and that the defendant retains the Northend home. That proposal was allegedly rejected by the plaintiff. The defendant accordingly prayed for the dismissal of the plaintiff's claim with costs.

Submissions by counsel

9. Ms *Gonyesa* submitted that the parties were no longer married, following the proceedings in Nebraska, which culminated in a divorce order granted on 23 July 2004, some twenty-one years ago. It was trite law that a marriage could only be dissolved through a divorce order.

10. Counsel dismissed the defendant's assertion that the divorce order was invalid, contrary to public policy, and not registrable in this jurisdiction as having no bearing in the present matter. Ms *Gonyesa* also submitted that a divorce order enjoyed the presumption of validity until set aside by a competent court. It was further submitted that there was no counterclaim before the court challenging the validity of the divorce order, and that even if the order was allegedly not made in good faith, it remained extant until properly set aside.

11. When asked by the court to comment on the fact that the order was granted outside the court's jurisdiction and had not been registered, Ms *Gonyesa* submitted that registration affected the order only for purposes of enforcement but did not negate the existence of the divorce order. She further submitted that the present proceedings were not concerned with the registration of the divorce order. The defendant was at liberty to challenge or seek the registration of that order. The divorce order merely nullified the marriage between the parties but did not deal with the property rights of the parties. Counsel relied on the case of *Ishemunyoro v Ishemunyoro* SC 14/19 to advance this point.

12. On whether the marital status of the parties affected their ability to deal with property, Ms *Gonyesa* submitted that it did not. This was because marriages in Zimbabwe were generally out of community of property. Counsel argued that the defendant's assertion that the property, having been acquired during the subsistence of the marriage, must be dealt with exclusively in divorce proceedings was misplaced. The question whether the parties were still married or not had no bearing on the present proceedings, which were concerned with the termination of joint ownership where the plaintiff had rights in the property. The plaintiff's name appeared on the title deed, and for that reason she had equal rights in the property, which entitled her to alienate her share. The plaintiff

afforded the defendant a right of first refusal, which he declined. Counsel also argued that there was nothing at law that could stop the parties, even those married, from dealing with their property as they deemed fit.

13. Ms *Gonyesa* also argued, on the strength of the *Ishemunyoro* judgment, that even if the parties remained legally married, nothing precluded the plaintiff from approaching the court for an order for the division of the property without necessarily seeking the concomitant relief of a divorce order. A party could choose to alienate or dispose of their proprietary rights as they deemed fit, and the provisions relating to division of assets upon divorce would not apply to the present matter.

14. In response, Miss *Shoko* submitted that although the marriage was dissolved, the applicable law required that, in divorce proceedings, the *domicilium citandi* of the husband be considered. She pointed out that the divorce was granted in Nebraska, United States of America, and argued that the order merely nullified the marriage but did not deal with other ancillary issues such as the sharing of the property and to divorce. That showed that the divorce settlement did not apply to the laws of Zimbabwe, which made it impossible for the property to be shared without a divorce order that fully accorded with Zimbabwean law

15. Miss *Shoko* further argued that if the present proceedings were determined in favour of the plaintiff, it would open a door for further claims against the defendant in respect of other property, resulting in piecemeal litigation. She contended that if proper divorce proceedings were conducted in terms of the laws of Zimbabwe and property was shared in terms of the law, this would allow for the final determination of all proprietary issues between the parties. Miss *Shoko* also submitted that the current proceedings were not properly before the court and the marriage thus still subsisted.

16. Miss *Shoko* acknowledged that the property could be shared even if the parties remained married, but she maintained that in this instance, the appropriate course was for the property to be addressed within properly constituted divorce proceedings. She submitted that the foreign divorce order did not comply with the laws of Zimbabwe as it merely nullified the marriage but did not deal with ancillary matters.

17. When asked by the court whether there was any legal impediment to the course of action taken by the plaintiff, Miss *Shoko* submitted that parties must reach agreement first, otherwise the property should only be shared through proper divorce proceedings so that the matter is dealt with to finality.

18. In reply, *Miss Gonyesa* submitted that the defendant's argument effectively invited the court to invalidate a subsisting divorce order without following proper procedure to deal with the order. She reiterated that the divorce order remained extant until set aside by a competent court. She further submitted that there were no additional properties, therefore, the plaintiff would not need to claim another property. Counsel maintained that the plaintiff was entitled to deal with her share of the property as she deemed fit. She concluded that the plaintiff approached the court for termination of the joint ownership only after unsuccessful attempts to negotiate with the defendant.

The Analysis

19. As earlier indicated, the parties agreed that the first two issues identified as legal issues be disposed of at the outset as they have a bearing on the future conduct of the matter. The two legal questions are whether the parties remain legally married and, if so, whether that marital relationship has any bearing on the present claim for the termination of joint ownership of the property in dispute.

20. The principal objection was predicated on the contention that the purported dissolution of the parties' marriage by the District Court of Sarpy County, Nebraska, in the United States of America, was not registrable or recognisable in this jurisdiction. On that basis, the defendant maintained that the parties remained legally married under Zimbabwean law. Flowing from that premise, the defendant argued that the property in question constituted matrimonial property, the distribution of which could only be competently determined within the framework of divorce proceedings before a court of competent jurisdiction. The present proceedings, so the argument went, were therefore premature and improperly before the court.

21. The plaintiff, on the other hand, disputed that position and contended that the foreign divorce order effectively dissolved the marriage between the parties. She averred that, regardless of any question of formal registration, the subsistence of the marriage did not constitute a bar to the relief sought in these proceedings. In her submission, the issue before the court is confined to the termination of a joint ownership relationship in respect of immovable property, a remedy which is available at the instance of any co-owner. She maintained that such a claim was distinct from, and did not depend upon, matrimonial proceedings.

22. The determination of whether the parties were still legally married informs the second question, namely whether such a marriage, if extant, precludes or otherwise affects the

plaintiff's entitlement to seek the termination of the joint ownership. Put differently, the court is called upon at this stage to determine whether the present action is competent in light of the parties' marital status and the legal consequences attendant thereto.

23. In resolving these preliminary issues, the court must consider, firstly, the legal effect of the foreign divorce order within this jurisdiction and, secondly, whether, assuming the marriage subsists, a co-owner spouse is nonetheless entitled to approach the court for the termination of joint ownership outside the context of divorce proceedings.

Whether the parties are still legally married

24. It is trite that a foreign judgment, including a foreign decree of divorce, is presumed valid and remains operative until set aside by a competent court.[1] In the present case, the undisputed facts were that the parties underwent divorce proceedings in Nebraska, culminating in the granting of a decree of divorce on 23 July 2004. For a period exceeding twenty years, neither party instituted proceedings challenging that decree. The defendant cannot now, in opposition to a claim for termination of joint ownership, seek to treat the divorce as though it never existed.

25. The mere fact that a foreign order has not yet been registered or recognised for purposes of enforcement, in my view, would not render it a nullity. It is the court's view that registration is a procedural mechanism intended primarily to facilitate enforcement within the jurisdiction in which it is sought to be enforced. It does not determine the existence or validity of the order itself.

26. Further, the consent clause contained in paragraph 10 of the Decree of Dissolution of Marriage granted by the District Court of Sarpy County, Nebraska is of considerable legal significance. It demonstrates beyond doubt that the parties voluntarily submitted themselves to the jurisdiction of the Nebraska Court and freely consented to the dissolution of their marriage and the terms regulating their post-divorce rights and obligations. The clause expressly provides that:

> "10. CONSENT: That each of the parties has entered into this Agreement upon mature consideration and after ample opportunity to seek the advice of separate counsel; that the parties consent to the agreements contained herein and that they have not been obtained by duress, fraud or undue influence of any person; that no representations of facts have been made by either party to the other except as expressly set forth herein; and the parties agree that this Agreement is fair and reasonable and not unconscionable. The parties further acknowledge and understand that if alimony is not awarded at this time, that

[1] *Lafotant v Kennedy* 2000 (2) ZLR 280 (S). The Court treated the foreign divorce decree as valid and operative without requiring the parties to first institute Zimbabwean divorce proceedings.

> neither party may petition or request the Court to award alimony at a later date."[2] (Underlining for emphasis)

27. The defendant cannot now seek to impugn the validity of the same order after voluntarily participating in the proceedings and acquiescing in the decree for over two decades. See *Makoni v Makoni* SC 57/25.

28. The conduct of the defendant falls squarely within the principle that a litigant who has acquiesced in and benefited from a judgment cannot later attack its validity without first seeking its rescission or setting aside before a competent court.

29. Further, the submission by Ms *Shoko* is, with respect contradictory. Counsel submitted that although the marriage was dissolved, the applicable law required that, in divorce proceedings, the *domicilium citandi* of the husband be considered.

30. Having made that concession, it was untenable to simultaneously argue that the divorce could not be recognised in Zimbabwe. Ms *Shoko's* argument further ignored the practical and legal reality that the defendant himself participated in the Nebraska proceedings and consented to the order. A party cannot voluntarily submit to a foreign jurisdiction, consent to a divorce order, live under its consequences for twenty-one years, and thereafter seek to deny its existence merely because litigation has arisen concerning the division of the parties' property.

31. The defendant's attempt to indirectly invalidate the foreign decree through submissions in opposition was therefore untenable. A court order, in my view, whether domestic or foreign, cannot be ignored simply because one party alleged irregularities or non-compliance with local legal and procedural requirements. Until properly challenged and set aside, it remains binding upon the parties concerned.

32. The court accordingly finds that the marriage between the parties was dissolved by the Nebraska Court order and that the parties are no longer legally married.

Whether or not the marriage has a bearing on the present action

33. The finding above substantially disposes of the second issue. However, even if the court was wrong in concluding that the marriage was dissolved, the court would still not accept the defendant's contention that the plaintiff was barred from seeking termination of the joint ownership outside divorce proceedings.

34. The property in question was registered in both parties' names under Title Deed No. 1623/1992. Under the Zimbabwean laws, registration of immovable property constitutes

[2] See page 67 of the record of proceedings

prima facie proof of ownership. See *Lafotant v Kennedy* 2000 (2) ZLR 280 (S). Joint ownership creates real proprietary rights independent of marital status. See *Ishemunyoro v Ishemunyoro* SC 14/19. The defendant's assertion that the plaintiff's inclusion on the title deed was merely nominal and motivated by love and affection did not detract from the legal consequences of the registration of her name on the title deed. Unless and until the title deed is impugned through appropriate proceedings, the plaintiff remained a co-owner of the property with all rights attendant thereto.

35. Further, the plaintiff is not seeking redistribution of matrimonial property *per se* but termination of co-ownership. The marital status (even if it existed) did not bar a co-owner from seeking termination of the joint ownership of the property. Zimbabwean marriages contracted in terms of the then Marriage Act [*Chapter 37*] are generally out of community of property. In paragraph 12 of the *Ishemunyoro* judgment, the Supreme Court affirmed that co-owners possess independent real rights and that co-ownership was governed by property law and a co-owner could alienate or deal with their share without requiring divorce proceedings. The court held as follows:

> "In our law, the legal regime governing ownership of immovable property by spouses within a subsisting marriage, reinforces rather than derogates from the principle that ownership of real rights is to be protected. In simple terms it provides for marriages out of community of property in the absence of an antenuptual contract executed by the spouses according to the relevant law. Specifically, s 2 of The Married Persons Property Act [Chapter 5:12] provides as follows:
>
> 1 …….
>
> **2 Community of property excluded from marriages after 1 January 1929, except where agreements made to the contrary**
>
> (1) Community of property and of profit and loss and the marital power or any liabilities or privileges resulting therefrom shall not attach to any marriage solemnized between spouses whose matrimonial domicile is in Zimbabwe entered into after the 1 January,1929, unless such spouses shall, by an instrument in writing, signed by each of them prior to the solemnization of their marriage and in the presence of two persons, one of whom shall be a magistrate, who shall subscribe thereto as witnesses, have expressed their wish to be exempt from this Act. (my emphasis)
>
> The import of this provision is that a spouse whose name appears for instance, in the Title Deed of any immovable property enjoys full ownership rights therein. He or she can deal with the property in any way he wishes, including alienating his rights therein or otherwise encumbering such property. Similarly, if both spouses are registered as joint owners of the property, each one enjoys full ownership rights over his or her share in the property."[3] (Underlining for emphasis)

36. The above dictum is, in my view, directly relevant to this matter in that it confirms that proprietary rights are not suspended pending divorce proceedings, and that ownership

[3] Para 12 on page 8 of the judgment

rights are exercisable independent of the divorce proceedings. The court in the *Ishemunyoro* case further accepted that one spouse's undivided share in jointly owned matrimonial property may be attached, alienated, or sold in execution. In paragraph 16 of the judgment, the court made the following observation:

> "In *casu*, while the appellant's half share of the property was not attached, the common law principle affirmed in the two cases cited above holds strong. This is that a writ of execution is properly enforced against the property of a judgment debtor, notwithstanding that it forms a part of jointly owned property."[4]

37. The implications of the above sentiments are that jointly owned matrimonial property is not protected from ordinary proprietary consequences merely because the parties were still married. Thus, if a spouse's share may be attached and sold to strangers outside of divorce proceedings, then a *fortiori*, a co-owner may seek termination of joint ownership outside of divorce proceedings. It is the court's view that the mere existence of a marriage does not extinguish a spouse's proprietary rights in jointly owned property, nor does it prohibit spouses from dealing with such property during the subsistence of their marriage.

38. The defendant argued that matrimonial property ought to be distributed exclusively within divorce proceedings to achieve finality and avoid piecemeal litigation. While that observation is correct as it is consistent with the principle to achieve finality in litigation, it is nevertheless not an immutable principle of law. The remedy sought in the present matter is not a redistribution of matrimonial assets in terms of divorce proceedings, but the termination of a joint ownership in immovable property which is recognised at common law. This right arises from co-ownership itself and is not dependent upon the dissolution of marriage proceedings. It is a separate cause of action altogether from a suit for termination of a marriage.

39. The court also determines that there is no merit in the submission by the defendant's counsel that permitting the present proceedings would unnecessarily expose the defendant to a multiplicity of actions. No evidence was placed before the court of pending or anticipated disputes concerning other properties and involving the same parties.

40. In the circumstances, the court concludes that the marital status of the parties does not constitute a bar to the present proceedings. Even if the parties' marriage still subsisted,

[4] Para 16 on page 12 of the judgment

the plaintiff, as a registered co-owner, would still be entitled to approach the court for the termination of the joint ownership of the parties' properties.

Costs

41. This matter is an offshoot of the main matter which is concerned with the termination of the parties' joint ownership of the immovable property. The finding made by the court on the two legal issues herein does not dispose of the principal dispute which remains live. It is only proper that costs be in the cause in the main matter.

ACCORDINGLY, IT ORDERED THAT:

1. The plaintiff and the defendant are not legally married following the dissolution of their marriage through a decree of divorce granted by the District Court of Sarpy County, Nebraska, United States of America on 23 July 2004.
2. The dissolution or subsistence of the parties' marriage does not preclude the plaintiff from seeking the termination of the parties' joint ownership in respect of Stand 25, Kenilworth Estate of Maunds Plot, situate in the District of Bulawayo, also known as No. 14 Irene Avenue, Kenilworth, Bulawayo.
3. The matter shall therefore proceed to trial on the remaining issues on a date to be advised by the registrar in consultation with the parties.
4. Costs shall be in the cause.

MUSITHU J……

Chitewe Law Practice, legal practitioners for the plaintiff
Mathonsi Ncube Law Chambers, legal practitioners for the defendant